

HEADNOTE

“The Court considers that, in the specific circumstances of the present case, the new defence arguments submitted by the respondents for the first time in their last written submission concerning the interpretation and infringement of feature 1.6 are admissible.

For the purpose of assessing the admissibility of the new arguments raised by the respondents with regard to the interpretation and infringement of feature 1.6, the following considerations are relevant.

First, it should be emphasised that claim construction is a matter of law, on which the Court may therefore also elaborate ex officio. The classification of this issue as a matter of law also entails that, had this Court held the respondents’ new submissions on this point to be inadmissible at first instance, the Court of Appeal could, in all likelihood and in full compliance with the adversarial principle, have taken those same arguments into consideration, with the practical consequence that one level of jurisdiction on a substantive issue in the present dispute would have been lost (for such a case, specifically related to non-infringement arguments, see UPC CoA no. 36/2026, order of 8 July 2026, para. 158 et seq.).

At the same time, it is essential and indispensable that the opposing party is always given the opportunity to be heard, in accordance with the adversarial principle and the right of defence.

The respondents introduced this new argument in their last written submission, filed one month before the oral hearing, without relying on any additional factual element or document that had not been on the case file from the outset of the proceedings.

Against that procedural background, significance must also be attached to the applicant’s conduct, since the applicant merely objected to the late filing, without requesting, even in the alternative or as a subsidiary request, the grant of a short time limit to file a reply confined to that specific issue.

During the oral hearing, the applicant was in fact given an adequate opportunity to respond to that specific argument, both as regards the interpretation of the claim and as regards infringement of the patent.

All the foregoing considerations must be assessed in the specific context of proceedings for provisional measures, where there is considerable time pressure and the parties are required to organise their arguments within very short time limits.

A different conclusion would amount to an overly rigid application of the front-loaded character of UPC proceedings, at least in the specific context of proceedings for provisional measures, with an excessive and in any event disproportionate impairment of the effectiveness of the right of defence.”

COURT
Local Division in Milan

PROCEEDINGS
Application for provisional measures

PATENT
EP 3 960 072 B1

Compact on-body physiological monitoring devices and methods thereof

KEYWORDS

Claim construction

Infringement

Procedural admissibility

Non-infringement

Appeal

SUMMARY

The Local Division in Milan ruled on an application for provisional measures. The patent at issue relates to compact on-body physiological monitoring devices and methods thereof. According to the headnotes of the decision, new defence arguments on feature 1.6 were admissible despite their late submission. Claim construction is a matter of law that the Court may address of its own motion. Had the arguments been rejected, the Court of Appeal could still have considered them. One level of jurisdiction on a substantive issue would then have been lost. The opposing party must always have the opportunity to be heard. The new argument relied on no new facts or documents and came one month before the hearing. The applicant only objected and did not request a short time limit to reply. At the oral hearing, the applicant could respond on both interpretation and infringement. In provisional measures proceedings, a stricter approach would apply front-loading too rigidly.